

Gupreet Singh v. State of U.P. And 2 Others

High Court of Judicature at Allahabad · Division Bench · 5 February 2025 · 2025:AHC:16244-DB · Writ-C No. 3233 of 2025 · **Writ disposed of; petitioner relegated to Clause 6.5 with stay of coercive action.**

HEADNOTE

A writ seeking to quash a recovery certificate for unpaid electricity bills was disposed of by relegating the consumer to Clause 6.5 of the U.P. Electricity Supply Code, 2005, with a time-bound decision and interim protection against coercive action.

FACTUAL SUMMARY

Gupreet Singh petitioned the Allahabad High Court in certiorari to quash a recovery certificate dated 3 December 2024 issued by respondent No. 2 for Rs. 9,96,769 with interest and recovery charges, and to command the authority to decide his application/objection dated 10 January 2025. Counsel for the Electricity Department submitted that recovery was founded on various unpaid bills produced with the departmental instructions.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection

HOLDING

Where a recovery certificate for unpaid electricity bills is challenged in writ, the consumer may approach the relevant authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005; if that application is made within ten days, it shall be decided within two months, and no coercive action shall be taken for three months or till the application is decided, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ seeking to quash a recovery certificate for unpaid electricity bills was disposed of by relegating the consumer to Clause 6.5 of the U.P. Electricity Supply Code, 2005, with a time-bound decision and interim protection against coercive action. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE AND UNPAID BILLS

Merits of the Rs. 9,96,769 demand and the objection dated 10.01.2025 were not decided; the petitioner was relegated to Clause 6.5. ¶ 4